

Multiple Choice (10 marks)

1. Which statement below is the least likely to follow logically from Dworkin's notion of law as integrity?
 - (a) It is likely to generate more individual rights and greater liberty.
 - (b) It renders a community more genuine.
 - (c) It opens the door to authoritarianism.
 - (d) It improves the moral justification for the exercise of political power.
2. The U.S. Congress is empowered by the Commerce Clause and other provisions of the U.S. Constitution to enact _____ to regulate foreign and interstate commerce.
 - (a) ordinances
 - (b) federal statutes
 - (c) executive orders
 - (d) charters
3. What is the purpose of sovereign immunity?
 - (a) The purpose of immunity is to protect foreign Heads of State from embarrassment
 - (b) Immunity protects a State from being invaded by another
 - (c) Immunity shields States from being sued in the courts of other States
 - (d) The purpose of immunity is to offer impunity in respect of all crimes
4. Why does Dworkin support liberal egalitarianism?
 - (a) Because it attempts to give effect to personal choice over individual luck.
 - (b) Because liberty is more important than equality.
 - (c) Because a market economy is just.
 - (d) Because the state is the best arbiter of equality between individuals.
5. Is recognition of governments prevalent in contemporary international practice?
 - (a) Recognition of governments is very prevalent in contemporary practice
 - (b) Recognition of governments has largely been replaced by functional Recognition
 - (c) Government recognition is common in respect of rebel entities
 - (d) Only democratic governments are recognised in contemporary practice

True / False (10 marks)

Answer True or False

6. True or False: Robert Nozick's formula $r \times H$ represents the extent of responsibility multiplied by actual harm done in determining punishment.
7. True or False: Hume's critique of natural law is based on the idea that moral truths cannot be known objectively.
8. True or False: An 'armed attack' gives the right to invade any State regardless of the level of force used.
9. True or False: The Badinter Commission required a commitment to human rights and democracy from the former Yugoslav republics.
10. True or False: The UN Human Rights Committee is a treaty-based mechanism responsible for monitoring the implementation of human rights treaties.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss how Durkheim's perspective on the function of punishment reflects the concept of vengeance within the framework of constitutional law. Analyze its implications for modern legal systems.
12. Discuss the reasons John Finnis provides for rejecting Hume's conception of practical reason, particularly in relation to how human reason can define a worthwhile life.

End of Paper